

## 25NNCV07509 25NNCV07509

County: los-angeles

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Department: X

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#7 - HOURY TARTARIAN vs MARGARET ANN TEMURYAN, et al.

### MOTION FOR ATTORNEY'S FEES

#### Tentative Ruling

Defendant Margaret Ann Temuryan's motion for attorney's fees and costs is granted in the amount of \$7,200. Defendant's request for \$576.76 in costs is DENIED.

#### Analysis

Counsel states he did not keep detailed time records. He itemizes his estimate as including time for meet-and-confer efforts regarding the demurrer, drafting the demurrer and request for judicial notice, a demurrer reply, appearance on the demurrer, drafting the anti-SLAPP motion, the anti-SLAPP reply, preparation for the anti-SLAPP hearing, appearance at that hearing, and work on the present fee motion.

The opposition does not dispute Defendant's entitlement to recover some reasonable fees and costs as the prevailing anti-SLAPP movant, but opposes the amount requested. (Opp., p. 4.) Plaintiff argues the request improperly includes 14 hours of demurrer-related work, rests on estimates rather than detailed records, includes anticipated future time, and does not adequately support the requested costs. (Opp., pp. 4-5.)

In reply, Defendant argues that a fee award may be supported by counsel's declaration even without billing records and that the Court may assess the reasonable value of the work from the record.

#### A. Entitlement

Because Defendant prevailed on her special motion to strike, and because Plaintiff does not dispute some entitlement to a fee award, the motion is granted in part as to fees. Defendant is therefore entitled to recover reasonable attorney's fees and costs.

#### B. Reasonable Attorney's Fees

The Court finds the requested hourly rate of \$400 reasonable. Counsel declares that \$400 is his normal hourly rate and that he has more than 30 years of experience and more than 30 jury trials. (Butland Decl., ¶ 4.)

The principal dispute concerns the number of recoverable hours. Counsel's declaration expressly allocates 14 hours to demurrer-related work: 1 hour for demurrer meet-and-confer efforts, 8 hours for researching and drafting the demurrer and request for judicial notice, 2 hours for the demurrer reply, and 3 hours for preparing for and appearing at the demurrer hearing.

Those hours will not be awarded. Section 425.16 does not shift fees for the entire action, and the demurrer was a separate motion that the Court took off calendar as moot after granting the anti-SLAPP motion.

That leaves 18 hours tied to the anti-SLAPP motion and fee application: 8 hours for researching and drafting the anti-SLAPP motion, 2 hours for the anti-SLAPP reply, 1 hour preparing for the continued hearing date, 3 hours preparing for and appearing at the March 5, 2026 hearing, and 4 hours for the present fee motion, opposition response, and hearing. (Butland Decl., ¶ 4.)

The absence of contemporaneous billing records does not bar recovery here. Counsel provided a verified declaration breaking the work into categories, and the record confirms that Defendant filed and prevailed on the anti-SLAPP motion, filed a reply, appeared at the hearing, and then filed the instant fee motion and reply. The Court finds 18 hours to be a reasonable measure of compensable time for the anti-SLAPP motion and the fee motion.

Applying the \$400/hour rate to 18 hours yields a fee award of \$7,200.00.

#### C. Costs

Counsel's declaration states only that, according to filing-service records, "the filing fees and court fees come to \$576.76 in this case."

The declaration does not itemize those charges or show which portion, if any, was incurred for the anti-SLAPP motion rather than the demurrer or other activity. On this record, the Court cannot determine that the requested \$576.76 is adequately supported as recoverable anti-SLAPP costs. The request for costs is therefore denied.

Moving Party is to give notice.